

Background

Defendant filed a Motion, on 1/22/26, to set aside the default judgment, which was filed on 10/31/25. Request for Entry of Default was filed on 8/29/25. The Complaint in the matter was filed on 5/5/25.

The Motion was properly noticed, and is unopposed.

Defendant also filed a Declaration with this Motion, which contained a form request, by the Defendant, for arbitration, purportedly made in June, 2025. The Declaration also contained the purported agreement between the parties, which allowed for arbitration if requested by one of the parties, and, once requested, rendered arbitration as the sole mechanism by which to adjudicate any disputes.

Analysis

Defendant seeks relief under Section 473(b) of the CCP, which provides authority to the court to set aside a judgment in cases where a defendant acts or fails to act out of mistake, inadvertence, surprise or excusable neglect. The statute requires that the motion be made no later than 6 months from the time the judgment was taken.

In the instant matter, Defendant timely moved to set aside the Judgment. Moreover, Defendant had more than sufficient reason for failing to file an Answer to the Complaint. Approximately one month after the Complaint, Defendant triggered the arbitration process, according to the terms of the agreement between the parties. By those terms, Defendant reasonably expected that, at minimum, any court process already proceeding would be suspended until the completion of arbitration.

That she was surprised to learn that Plaintiff had proceeded with litigation in court, and that she was required to respond to the court pleadings of the Plaintiff, is more than justified.

Disposition

Defendant's Motion is **granted**.

The litigation will be stayed until resolution of the arbitration process.

Defendant shall prepare and submit the Order.

12. 9:00 AM CASE NUMBER: L25-05839
CASE NAME: MARINER FINANCE, LLC VS. LORETTA ROBERTSON
***HEARING ON MOTION FOR DISCOVERY**
FILED BY: MARINER FINANCE, LLC
TENTATIVE RULING:

Background

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum, all filed on 1/21/26.

Plaintiff attached the particular facts at issue in their Exhibit A to their Declaration, entitled 'Requests For Admissions, Set No. ONE.'

Plaintiff attached a proof of service, indicating email service to Defendant's attorney of record on the same date.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff shall prepare and submit the Order.

13. 9:00 AM CASE NUMBER: L25-09232

CASE NAME: CAPITAL ONE N.A. VS. RACHEL RUMSEY

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION
FILED BY: CAPITAL ONE N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.